

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

Index No.:  
Date Purchased:

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**LISANDRO HERNANDEZ,**

**SUMMONS**

Plaintiff(s),

Plaintiff designates New  
York County as the place of  
trial.

- against -

The basis of venue is:  
Plaintiff's residence

THE CITY OF NEW YORK, COMMISSIONER RAYMOND  
KELLY IN HIS OFFICIAL CAPACITY, CAPTAIN COATES  
AS THE COMMANDING OFFICER OF TRANSIT  
DISTRICT 3, P.O. CHOEINSKI, SHIELD NO whose  
first name and shield number are presently unknown,  
P.O. ROBERT RODRIGUEZ, SHIELD NO: whose shield  
number is presety unknown, and P.O. RIVERO, whose first  
name and shield number are presently unknown,

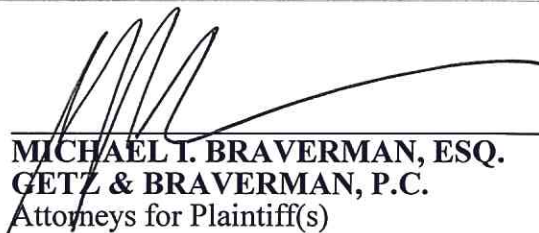
Plaintiff resides at:  
34 Convent Ave., Apt. 18  
New York, New York  
10027  
County of New York

Defendant(s).  
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**To the above named Defendant(s):**

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York  
February 27, 2015

  
\_\_\_\_\_  
**MICHAEL I. BRAVERMAN, ESQ.**  
**GETZ & BRAVERMAN, P.C.**  
Attorneys for Plaintiff(s)  
**LISANDRO HERNANDEZ**  
172 East 161<sup>st</sup> Street  
Bronx, New York 10451  
(718) 993-3000  
Our File No. 8836

TO: **OFFICE OF CORPORATION COUNSEL**  
**CITY OF NEW YORK**  
100 Church Street  
New York, NY 10007

**COMMISSIONER RAYMOND KELLY**

One Police Plaza  
New York, NY 10007

**CAPTAIN COATES IN HIS OFFICIAL  
CAPACITY AS COMMANDING OFFICER  
OF TRANSIT DISTRICT 3**

West 145<sup>th</sup> Street & St. Nicholas Avenue  
New York, New York 10039

**P.O. CHOEINSKI**

**Transit District 3**

West 145<sup>th</sup> Street & St. Nicholas Avenue  
New York, New York 10039

**P.O. ROBERT RODRIGUEZ**

**Transit District 3**

West 145<sup>th</sup> Street & St. Nicholas Avenue  
New York, New York 10039

**P.O. RIVERO**

**Transit District 3**

West 145<sup>th</sup> Street & St. Nicholas Avenue  
New York, New York 10039

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SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

**VERIFIED  
COMPLAINT**

-----X  
**LISANDRO HERNANDEZ,,**

Index No.:  
Date Purchased:

Plaintiff(s),

- against -

THE CITY OF NEW YORK, COMMISSIONER RAYMOND KELLY IN HIS OFFICIAL CAPACITY, CAPTAIN COATES AS THE COMMANDING OFFICER OF TRANSIT DISTRICT 3, P.O. CHOEINSKI, SHIELD NO whose first name and shield number are presently unknown, P.O. ROBERT RODRIGUEZ, SHIELD NO: whose shield number is presently unknown, and P.O. RIVERO, whose first name and/or shield number are presently unknown,

Defendant(s).  
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Plaintiff, by his attorneys, **GETZ & BRAVERMAN, P.C.**, complaining of the Defendants, respectfully alleges, upon information and belief:

1. At the time of the commencement of this action, Plaintiff was a resident of the County of New York, City and State of New York.
2. This action falls within one or more of the exemptions set forth in CPLR §1602.
3. The cause of action alleged herein arose in the County of New York, State of New York.
4. Upon information and belief, that at all times hereinafter mentioned, the defendant **THE CITY OF NEW YORK**, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
5. Upon information and belief, that at all times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, its agents, servants and employees operated, maintained and controlled the Police Department of the City of New York , including all the police officers thereof.
6. That prior hereto on August 26, 2014, and within the time prescribed by law, a



sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on the Comptroller of the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

7. That a 50-H hearing was held on February 25, 2015.

8. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

9.. That on August 21, 2014 Plaintiff **LISANDRO HERNANDEZ** was getting off the A train at the 168<sup>th</sup> Street Station, County, City and State of New York, when plaintiff was caused to sustain injuries when arrested by members of the **NEW YORK CITY POLICE DEPARTMENT** who exerted excessive force when handcuffing plaintiff.

10. That said occurrence and the result thereof were due solely and wholly by reason of the negligence, carelessness and recklessness of the Defendants, their agents, servants, employees, licensees, designees and/or representatives in ownership, maintenance, management, supervision, charge and control of the aforesaid entity and personnel employed thereat.

11. That there was no culpable conduct on the part of the claimant contributing thereto.

#### **AS AND FOR A FIRST CAUSE OF ACTION**

12. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "11", with the same force and effect as if more fully and completely set forth at length herein.

13. That on or about August 21, 2014 during the afternoon while the Plaintiff was lawfully at the above mentioned location, when members of the **NEW YORK POLICE DEPARTMENT** without just cause or provocation arrested Plaintiff using excessive force when placing the handcuffs, causing Plaintiff to sustain serious injuries.

14. That the defendants, their agents, servants and employees, acting as agents and on behalf of defendants and within the scope of their employment, intentionally, willfully and maliciously intimidated Plaintiff, **LISANDRO HERNANDEZ**, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact in the plaintiff, and defendants, in a hostile and/or offensive manner used excessive force handcuffing the plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused hi pain, fear and anxiety.

15. That by reason of the aforesaid intentional mistreatment committed by the defendants, their agents, servants and employees, acting within the scope of their authority and without probable or reasonable cause, the Plaintiff suffered great bodily injury in and about the anatomy and was rendered sick, sore, lame and disabled, and among other things, he suffered conscious pain and suffering and that he was otherwise damaged.

16. That by reason of the aforesaid, the Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower Courts which otherwise would have jurisdiction.

#### **AS AND FOR A SECOND CAUSE OF ACTION**

17. Plaintiff repeats, reiterates and realleges each and very allegation contained in paragraphs marked "1" through "16", with the same force and effect as if more fully set forth herein.

18 That the defendant, **THE CITY OF NEW YORK**, was careless and reckless in hiring and retaining as and for its employee, the above named individuals: in that the said defendant's employees, the above named individual; in that the said defendant's employee lack the experience, department and ability to be employed by the defendant; in that the defendant failed to exercise due care and caution concerning its hiring practices, and in particular, hiring the defendant employees who lacked the mental capacity and the ability to function as employees



of the aforementioned defendants; in that the defendants lacked the maturity, of said defendant employees when they hired them to be employees, and, in that the defendants, their agents, servants and employees were otherwise careless, negligent and reckless.

19. That the aforesaid occurrence, to wit: the excessive force used and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the plaintiff.

20. That by reason of the aforesaid, the plaintiff was injured in mind and body and still suffers and upon information and belief, will continue to suffer great physical and mental pain , and he was rendered sick, sore, lame and disabled and so remains, and he has expended and incurred divers sums of money in an effort to cure himself of said injuries to extricate himself from the indignities and humiliation imposed upon him by the actions of the defendants, their agents, servants, employees, including counsel fees and disbursements, and upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.

#### **AS AND FOR A THIRD CAUSE OF ACTION**

21. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "20" , with the same force and effect as if more fully set forth herein.

22. That the defendant, their agents, servants and employees negligently, carelessly and recklessly failed to properly train and supervise their employees, in particular the members of the **NEW YORK CITY POLICE DEPARTMENT**, and impart upon them the knowledge of the proper circumstances under which an arrest and search may be made; to control their tempers and exercise the proper deportment, behavior and conduct as representatives of their employers; and in that the defendants, their agents, servants and employees were otherwise reckless, careless and negligent.

23. That while in the custody, care and control of the defendants, without any just cause and/or provocation, plaintiff experienced mocking, ridicule, insulting, cursing and

totally improper and abusive behavior from **P.O. CHOEINSKI, P.O. ROBERT RODRIGUEZ and P.O. RIVERO**. When asked to stop, they merely just continued what they were doing.

24. That the aforesaid occurrence to wit: the use of excessive force and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the plaintiff.

25. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and he was rendered sick, sore, lame and disabled and so remains, and he was incapacitated from his usual occupation by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and upon information and belief, will expend further sums in that direction, and the plaintiff was been otherwise damaged.

26. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

#### **AS OF THE FORTH CAUSE OF ACTION**

27. Plaintiff repeats, reiterates and realleges each and very allegation contained in paragraphs marked "1" through "26" , with the same force and effect as if more fully set forth herein.

28 That the defendants, their agents, servants and employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their police duties as a reasonably prudent and careful police officer would have used under similar circumstances in that they carelessly and recklessly without provocation and with great force and violence; negligently, carelessly and recklessly used the threat of physical force and actually used physical force upon the plaintiff thereat; and in that the defendants, their agents, servants and employees were otherwise careless, reckless and negligent.

29. That the aforesaid occurrence, to wit: the assault and the resulting injuries to mind



and body therefrom, were caused wholly and solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the plaintiff.

30. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and he was rendered sick sore, lame and disabled and so remains, and he was incapacitated from his usual duties, chores and activities by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and, upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.

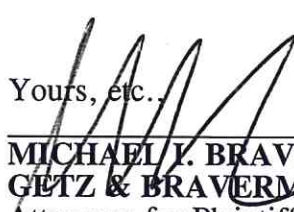
31. VIOLATION OF THE CIVIL RIGHTS pursuant to U.S.C.A. §1981, 1983, 1985, in that claimant **LISANDRO HERNANDEZ** was deprived of his rights, privileges and immunities secured by the Constitution and laws of the United States of America by one who, under color of a statute or regulation of a state, caused claimant to be so deprived and other and further violations of claimant's rights and privileges secured to claimant under the Constitutions of the United State of America and State of New York.

32. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

**WHEREFORE**, Plaintiffs demand judgment against the Defendants herein on all causes of action, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Bronx, New York  
February 27, 2015

Yours, etc.,

  
\_\_\_\_\_  
**MICHAEL J. BRAVERMAN, ESQ.**  
**GETZ & BRAVERMAN, P.C.**

Attorneys for Plaintiff(s)  
**LISANDRO HERNANDEZ**  
172 East 161st Street  
Bronx, NY 10451  
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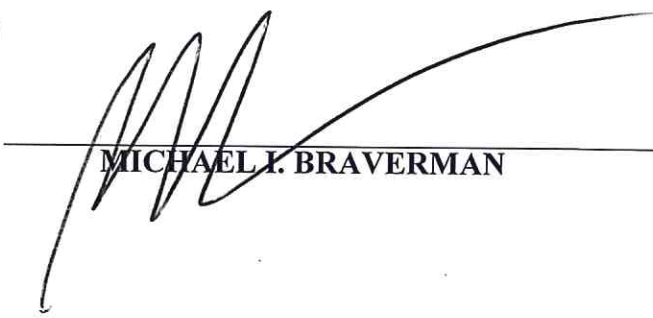
## ATTORNEY'S VERIFICATION BY AFFIRMATION

**MICHAEL I. BRAVERMAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at **GETZ & BRAVERMAN, P.C.**, attorneys of record for Plaintiff(s), **LISANDRO HERNANDEZ**. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED:      Bronx, New York  
                 February 27, 2015



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**MICHAEL I. BRAVERMAN**

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SUPREME COURT OF THE STATE OF NEW YORK  
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LISANDRO HERNANDEZ,

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- against -

Defendants.

THE CITY OF NEW YORK, COMMISSIONER  
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OF TRANSIT DISTRICT 3, P.O. CHOEINSKI, SHIELD NO  
first name and shield number are presently unknown,  
P.O. ROBERT RODRIGUEZ, SHIELD NO: whose shield  
number is presently unknown and P.O. RIVERO,  
whose first name and shield number are presently unknown,

Defendant(s).

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**SUMMONS AND VERIFIED COMPLAINT**

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**GETZ & BRAVERMAN, P.C.**

*Attorneys for Plaintiff*  
172 East 161<sup>st</sup> Street  
Bronx, New York 10451  
(718) 993-3000

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TO: **OFFICE OF CORPORATION COUNSEL**  
**CITY OF NEW YORK**  
100 Church Street  
New York, New York 10007

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**COMMISSIONER RAYMOND KELLY**  
**IN HIS OFFICIAL CAPACITY**  
One Police Plaza  
New York, New York 10038

**CAPTAIN COATES IN HIS OFFICIAL**  
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